

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

16. STANLEY DURAN, JR. V. ROSE DURAN

25FL0820

The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 8, 2026, and a review hearing on March 26, 2026, following the court issuing a permanent restraining order protecting Respondent.

Parties appeared at the CCRC appointment and reached agreements regarding custody and parenting time. The agreements appear to conflict with the orders issued in the DV-140, which themselves are contradictory. A report with the parties' agreements and recommendations was filed with the court on January 20, 2026, and mailed to the parties on January 22nd.

Petitioner filed an ex parte request for emergency orders on March 17, 2026. On March 18, 2026, the court granted an order shortening time, as the parties had a review hearing set for March 26th. Petitioner filed the Request for Order (RFO) on March 18, 2026. Respondent was served on March 19th. While the FL-300 states the hearing is set for March 26, 2026 at 1:30 PM in Department 8, that is a clerical error. The hearing is set in Department 5.

Parties are ordered to appear for the hearing in Department 5.

TENTATIVE RULING #16: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

LAW & MOTION TENTATIVE RULINGS
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8:30 a.m./1:30 p.m.

17. MELISSA FLANIGAN V. SHAUN FLANIGAN

23FL0255

On October 3, 2025, Petitioner filed a Request for Order (RFO) seeking modification of the custody and parenting plan orders as well as attorney's fees and sanctions. Respondent filed an Order Shortening Time and RFO seeking to compel and clarification of the current orders on November 14, 2025.

The parties were ordered to appear for hearing on both RFOs on December 4, 2025. The parties presented the court with an agreement which was accepted by the court and all issues were continued to the present date.

On November 26, 2025, Respondent filed an RFO for child custody, child visitation, child support, spousal support, and enforcement of the order for a vocational evaluation.

Respondent's Supplemental Declaration was filed and served on January 2, 2026. He filed another declaration on January 16th.

Petitioner filed a Responsive Declaration to Request for Order, a Supplemental Declaration, and an Income and Expense Declaration on January 20th.

Respondent's Reply Declaration, Memorandum of Points and Authorities, and another Reply Declaration were all filed and served on January 20th.

Respondent filed a Supplemental Declaration on February 23, 2026. It was electronically served on February 20th.

Respondent filed a further Declaration on February 26, 2026. It was electronically served on February 20th. The court notes the February 23rd and 26th declarations appear to be identical.

Respondent filed another Supplemental Declaration on February 13, 2026. It was served on the same day.

Petitioner filed a Supplemental Declaration on March 16, 2026. It was served the same day.

Respondent filed a Reply Declaration on March 17, 2026. It was served the same day.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #17: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.